

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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ESSENCE EVERETT,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

THE CITY OF NEW YORK, DETECTIVE
DAWKINS¹ and POLICE OFFICERS JOHN DOE 1-10²,
Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff’s Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
September 18, 2020

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

¹ The plaintiff is presently unaware of the last name and tax/badge number(s) of this defendant. However, upon information and well founded belief, at the time of the incident that forms the subject of her claim, said defendant was assigned to the NYPD’s “Narcotics Borough Brooklyn North”.
² The plaintiff is presently unaware of the full names and tax/badge numbers of these defendants. However, upon information and well founded belief, at the time of the incident that forms the subject of her claim, said defendants were assigned to the NYPD’s “Narcotics Borough Brooklyn North”.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS
-----X Index No.
ESSENCE EVERETT,

Plaintiff,

-against- COMPLAINT

THE CITY OF NEW YORK, DETECTIVE
DAWKINS¹ and POLICE OFFICERS JOHN DOE 1-10²,

Defendants.

-----X
ESSENCE EVERETT (hereinafter "plaintiff"), by her attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK (hereinafter referred to as "the City"), DETECTIVE DAWKINS (hereinafter referred to as "Dawkins") and POLICE OFFICERS JOHN DOE 1-10 (hereinafter collectively referred to as "John Doe officers"), upon information and well founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law that sounds in the intentional torts of false arrest/false imprisonment.

THE PARTIES

2. Plaintiff is an African-American female of full age.
3. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of defendants Dawkins and the John Doe Officers, through its Police Department, namely the New York City Police Department ("NYPD"), and the actions of defendants Dawkins and the John Doe

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² The plaintiff is presently unaware of the full names and tax/badge numbers of these defendants. However, upon information and well founded belief, at the time of the incident that forms the subject of her claim, said defendants were assigned to the NYPD's "Narcotics Borough Brooklyn North".

Officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

4. At the time of the incident complained of herein, defendants Dawkins and the John Doe Officers was in the course of their duties. As such, the City is responsible for the actions of defendants Dawkins and the John Doe Officers, based upon the theory of *respondeat superior*.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

5. All conditions precedent to filing of this action have been complied with; on December 16, 2019, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or her representative, was served upon the defendant City by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was not assigned a claim number.
6. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
7. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

8. On or about September 19, 2019, at approximately 05:00 a.m., within the plaintiff's residence described as 362 Sutter Avenue, #5H, Brooklyn, N.Y. 11212 ("subject premises") the plaintiff's premises were unlawfully searched, up-ended, and personal items destroyed; and the plaintiff was unlawfully and wrongfully arrested and/or caused to be arrested by defendants Dawkins and the John Doe Officers.
9. Defendants Dawkins and the John Doe Officers had gained entry into the subject premises by forcibly breaking down the front door.

10. At the time that defendants Dawkins and the John Doe Officers entered into the subject premises, present within said subject premises as well as the plaintiff were Doreen Everett (the plaintiff's mother), Willie Mingo (Doreen Everett's boyfriend and the father of the plaintiff's sister, Dakota Mingo), Dakota Mingo and Jilylah Bloomfield, the plaintiff's child.
11. Upon entry into the subject premises, the plaintiff was immediately placed in handcuffs, even though nothing illegal was recovered from her or the subject premises.
12. The plaintiff was then transported to a police precinct. Upon arrival at the precinct, the plaintiff was handcuffed to a chair.
13. The plaintiff was subsequently processed, or otherwise photographed and fingerprinted.
14. At approximately 11:00 a.m. on 09/19/2019, the plaintiff was released from custody after being issued with a Desk Appearance Ticket that mandated her to appear before an entity named "*Brooklyn Clear*".
15. Upon her release(s) from custody, the plaintiff discovered that defendants Dawkins and the John Doe Officers had maliciously reported her to the NYS Child Abuse and Maltreatment Register, alleging maltreatment of her child Jilylah Bloomfield, following which a NYC ACS worker was assigned to investigate her.
16. The plaintiff learnt that defendants Dawkins and the John Doe Officers had falsely claimed that they had recovered some type of drug residue from a countertop within the kitchen of her residence.
17. In fact, there were no drugs of any type recovered from anywhere within the subject premises.
18. The plaintiff subsequently received a letter dated October 30, 2019 from the Kings County District Attorney's (KCDA) office wherein the KCDA stated that it had declined to prosecute the plaintiff.
19. The plaintiff's arrest number was "K19647450".

20. Defendants Dawkins and the John Doe Officers were employed by The City of New York, and specifically, were in the course of their duties when they committed the above-referenced wrongful and intentional acts against the plaintiff. As such, the City of New York is responsible for said officers actions, based upon the theory of *respondeat superior*.

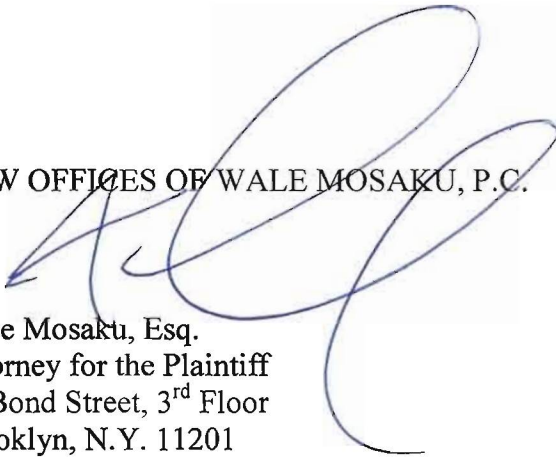
CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
NEW YORK STATE LAW

21. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 20 of this complaint as though fully set forth herein.
22. The above-described respective arrest, detention and imprisonment of the plaintiff by defendants Dawkins and the John Doe Officers were without just or probable cause, and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
23. As a result of plaintiff's above-described false arrest and detention by defendants Dawkins and the John Doe Officers, she has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know her, was prevented from attending to her necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in her character and reputation.
24. Defendants Dawkins and the John Doe Officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for their unlawful acts towards the plaintiff as described above.
25. Consequently, the plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial against the defendant.

WHEREFORE, plaintiff prays for judgment against the defendant, individually and severally as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including her reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
September 18, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku, Esq.
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X Index #:
ESSENCE EVERETT,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)THE CITY OF NEW YORK, DETECTIVE
DAWKINS¹ and POLICE OFFICERS JOHN DOE 1-10²,
Defendants.

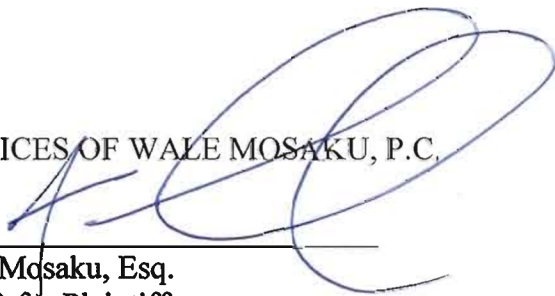
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the Courts of the State of New York. I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the Court in this action are not frivolous.

Dated: Brooklyn, New York
September 18, 2020

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

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SUPREME COURT OF THE STATE OF NEW YORK
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ESSENCE EVERETT,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, DETECTIVE
DAWKINS¹ and POLICE OFFICERS JOHN DOE 1-10²,
Defendant(s).

SUMMONS & COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To: Service of a copy of the within
is hereby admitted.
Dated:..... 202__

Attorney(s) for Defendant(s)

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